



City Council September 12

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=mRHFNs27Pk8
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Municipal Meeting Summary: Muncie City Council

Date: September 12, 2022

Body: Muncie City Council (Regular Meeting & Prior Public Hearing)

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** Statutory Public Hearing [00:00:12](#) concerning upcoming municipal ordinances, including street vacations, budgets, and appropriations (Ordinances 27-22, 28-22, 30-22, 32-22, and 33-22).
- **Summary of Discussion:**
 - Attorney John LaRue spoke in favor of Ordinance 27-22 to vacate a portion of 5th Street (Anthony Street) to allow property owners (Nybargers) to join their properties.
 - Public comments were received regarding budget and levy increases, federal American Rescue Plan (ARP) funds allocated to the Sanitary District, fixed-route transit service declines, and rising property assessments/pension obligations.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the regular meeting to order at 7:00 PM [00:13:13](#).
 - **Attendance:**
 - **Members Present:** Mr. Ingram, Mr. Garrett, Mr. Overby, Mr. Dishman, Mr. Green, Mr. Polk, Mr. Clark, and Councilwoman Selvey. (President Robinson presiding).
 - **Members Absent:** Not explicitly noted.
 - **Presiding Officer:** President Robinson.
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** Opening prayer led by Pastor Mitchell, followed by the Pledge of Allegiance [00:13:19](#). Citizen of the Month was awarded to Jenna Ashby, Director of Impact and Programs at Muncie Habitat for Humanity, presented by Councilwoman Selvey [00:14:46](#).
 - **Approval of Minutes:** Minutes from the August 1st Council Meeting were approved by voice vote (Motion by Councilman Ingram, seconded by Councilman Polk) [00:17:56](#).
 - **Committee Reports:**
 - Redistricting Committee update provided by Councilman Polk [00:18:28](#). After reviewing quotes (\$3,500 to \$6,000), the committee recommended keeping the previous 10 years' district lines essentially the same, with one minor precinct adjustment (Precinct 5 combined into 14 in District 3). No formal vote was required; an ordinance will be drafted accordingly.
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4. Substantive Business & Board Action

[00:20:11](#) Ordinance 27-22: Ordinance to Vacate a Portion of 5th Street (Anthony Street)

- **Sponsor / Presenter:** Introduced for first reading; Attorney John LaRue representing petitioners.
- **Deliberation Summary:** Allows property owners to combine parcels split by a small plateau of unvacated right-of-way.
- **Item-Specific Public Input:** None during the regular meeting session.
- **Action & Vote Disposition:** Approved for introduction by Voice Vote.

[00:21:28](#) Ordinance 28-22: Muncie Sanitary District 2023 Budget

- **Sponsor / Presenter:** Dena Cox, Financial Manager for the Muncie Sanitary District.

- **Deliberation Summary:** Discussion regarding increased costs for fuel, oil, and third-party disposal fees impacting the budget.
- **Item-Specific Public Input:** Questions raised regarding tax levies versus sewer fees.
- **Action & Vote Disposition:** Approved for introduction by Voice Vote (Motion by Selvey, seconded by Polk).

00:23:46 Ordinance 29-22: Amending Chapter 93 (Beach Grove Cemetery Rules)

- **Sponsor / Presenter:** Troy Waters, Cemetery Superintendent, and Council Attorney Gibson.
- **Deliberation Summary:** Amends rules to allow leashed dogs in the cemetery, updates the Board of Trustees' annual superintendent evaluation timeline from April to November, removes outdated provisions regarding tombstone damage (covered by state law), and removes firearm carrying prohibitions to comply with state preemption law.
- **Action & Vote Disposition:** Approved for introduction by Voice Vote (Motion by Garrett, seconded by Ingram).

00:28:43 Ordinance 30-22: Additional Appropriations <U+2013> Beach Grove Cemetery (\$209,000)

- **Sponsor / Presenter:** Troy Waters, Superintendent.
- **Deliberation Summary:** Requests \$209,000 from accumulated cemetery cash funds (non-reverting cash reserves of ~\$500k+) for capital and emergency repairs: a used 2011 Caterpillar backhoe (\$70k), two commercial mowers (\$30k), a Kubota UTV (\$17k), and exterior chapel/office tuck-pointing/masonry repairs (\$75k).
- **Item-Specific Public Input:**
 - A resident suggested considering a track excavator instead of a backhoe, which Superintendent Waters and Councilman Clark addressed regarding operational versatility.
 - Rick Yancer inquired about cemetery fence and pillar repairs.
 - Mary Selts praised the physical condition of the cemetery under Waters' leadership.
- **Action & Vote Disposition:** Approved for introduction by Voice Vote (Motion by Polk, seconded by Ingram).

00:51:53 Ordinance 31-22: Establishing Procedure for Naming/Renaming City Facilities

- **Sponsor / Presenter:** Council Attorney Gibson, requested by Councilwoman Selvey.
- **Deliberation Summary:** Establishes a formal public process, written justification requirements, and mandatory City Council (and Park Board, if applicable) approval for naming or renaming public buildings, parks, monuments, and facilities.
- **Item-Specific Public Input:** Christopher Bilbury suggested considering a generational time limit (e.g., 50<U+2013>60 years) to avoid putting pressure on direct descendants.

- **Action & Vote Disposition:** Approved for introduction by Voice Vote (Motion by Garrett, seconded by Ingram).

00:55:59 Ordinance 32-22: MITS Budget 2023

- **Sponsor / Presenter:** Amanda Price Clark, General Manager.
- **Deliberation Summary:** Routine budget introduction for Muncie Indiana Transit System (MITS).
- **Action & Vote Disposition:** Approved for introduction by Voice Vote (Motion by Green, seconded by Ingram).

00:57:02 Ordinance 33-22: Muncie City Budget 2023

- **Sponsor / Presenter:** President Robinson / Finance Committee.
- **Deliberation Summary:** Presiding officer noted that budget discussions will be deferred to a series of upcoming public Finance Committee meetings (scheduled for Sept 28, Oct 5, and Oct 19 at 6 PM) to avoid school fall breaks, with a final special meeting vote in mid-to-late October ahead of the November 1 statutory deadline.
- **Action & Vote Disposition:** Approved for introduction by Voice Vote (Motion by Selvey, seconded by Polk).

00:59:33 Resolution 20-22: Preliminary Economic Revitalization Area <U+2013> Real Estate Tax Abatement (ADK Management Inc. / Cedars of Muncie LLC)

- **Sponsor / Presenter:** Scott Mick, Cedars of Muncie LLC.
- **Deliberation Summary:** Councilwoman Selvey requested that the applicant provide formal cost quotes for each intended property improvement prior to final tax abatement committee review.
- **Action & Vote Disposition:** Approved by Roll Call Vote (9-0).

01:01:34 Resolution 21-22: Transfer of Appropriations <U+2013> EMS / Fire Department

- **Sponsor / Presenter:** Chief Donnie Wright.
- **Deliberation Summary:** Transfers existing funds internally from paramedic line items to other services and charges to cover legacy bills from Heartland Services. No new tax money is added.
- **Action & Vote Disposition:** Approved by Roll Call Vote (9-0) (Motion by Green, seconded by Garrett).

01:03:36 Resolution 22-22: Urging the Indiana General Assembly to Take Action to Protect Tenant Rights

- **Sponsor / Presenter:** Introduced by Councilman Robinson.

- **Deliberation Summary:** Resolution calls on the Indiana General Assembly to lift state preemption and statutory handcuffs that prevent local municipalities from enacting effective local landlord-tenant regulations, code enforcement penalties, and tenant protections. Council members discussed utilizing local building commissioners, health departments, and the Muncie Human Rights Commission (Yvonne Thompson), while acknowledging that local enforcement teeth are severely limited by state statute. State Representative Sue Arrington spoke in support, noting her prior opposition to state preemption bills.
- **Item-Specific Public Input:** Extensive public testimony regarding slumlords, deplorable housing conditions (sewage backup, mold, lack of heat/hot water), illegal entry, and predatory fees by corporate property managers (specifically Middletown Properties / BSU Rentals):
 - **Heidi Vaughn (01:17:32):** Former tenant detailing unannounced maintenance entries and retaliatory fees.
 - **Seth Rawlings (01:18:44):** Described severe plumbing failures (no toilet for 3 weeks, sewage in shower) and unannounced showings.
 - **Cheyenne Brooks (01:21:03):** PSL organizer presenting tenant demands regarding Middletown Properties and Ball State University student rentals.
 - **Jacob Bornberg (01:36:39):** Middletown tenant detailing structural/plumbing defects and "redecorating" fee structures.
 - **Sarah Vitale (01:40:03):** Spoke on legislative hurdles at the statehouse.
 - **Preston Cross (01:40:59):** Called for broad community protests.
 - **Christopher Bilbury (01:41:51):** Commended the council for giving tenants a public record.
 - **Nick Atlas (01:44:02):** White River Lofts tenant detailing ongoing water damage, mold risks, and lack of hot water at luxury rates.
 - **Brian Shaw (01:50:58):** Suggested tying local tax abatements to property management performance.
 - **Jeff Hager (01:51:56):** Discussed historic disputes and housing authority concerns.
 - **Melissa Bass (Read into record 01:48:52):** Community organizer statement thanking the council and emphasizing the human cost of unsafe housing.
- **Action & Vote Disposition:** Approved by Roll Call Vote (9-0) (Motion by Garrett, seconded by Ingram).

5. Open Public Comment / Citizen Forum

(Note: General public forum comments largely merged with the extensive testimony held during Resolution 22-22 above. Additional administrative comments occurred during Other Business).

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**

- Councilwoman Selvey announced upcoming community events: Fall 2022 Munciana Art Show (Oct 5-8 at Canan Commons); Gathering Grace free community meals every Sunday at 3 PM at Grace Episcopal Church; and the Muncie Community Schools / Engagement Council Golf Outing (Oct 7) addressing absenteeism.
- Councilman Shaw inquired about street parking and striping on East Washington Street; directed to contact City Engineer Adam Leach.

- **Adjournment:** Official adjournment disposition approved by voice vote at 02:13:21.
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